Recording is the customer’s duty too

The EULA treats recordings as customer data. It says calls can be recorded while the caller is on hold and after a transfer. It puts notice and consent on the customer, who has to follow the laws that apply to their calls.

This lab will not invent a script that ’covers every state.’ Play the notice your counsel wrote. Put it in the IVR before the surprise, and do not assume hold music erases the recorder.

Play the notice counsel wrote

Assume hold and transfer can be recorded

Sources and go deeper

End user license agreement. vendor. https://www.five9.com/legal/end-user-license-agreement. last checked 2026-10.

Data retention. vendor. https://www.five9.com/legal/dataretention. last checked 2026-10.

Interactive voice response. wikipedia. https://en.wikipedia.org/wiki/Interactive_voice_response. last checked 2026-10.